

Lakshmi Bai W/O Ashok Yallappa Natikar vs Ashok S/O Yallappa Natikar on 1 August, 2023

- 1 -

NC: 2023:KHC-K:6015

CP No. 200027 of 2021

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 1ST DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MRS JUSTICE K S HEMALEKHA

CIVIL PETITION NO.200027 OF 2021 (RES)

BETWEEN:

SMT. LAKSHMI BAI
W/O ASHOK YALLAPPA NATIKAR,
AGE: 35 YEARS,
OCC: HOUSEHOLD,
R/O. BALBATTI VILLAGE,
TQ. MUDDEBIHAL,
DIST. VIJAYAPURA-586212.

...PETITIONER

(BY SRI. AJAY KUMAR ASHOK KUMAR, ADVOCATE)

AND:

Digitally signed by

SHILPA R TENIHALLI
Location: HIGH
COURT OF

KARNATAKA

SRI ASHOK S/O YALLAPPA NATIKAR

AGE: 45 YEARS,

OCC: GOVT. SERVANT,
R/O NO.703, D-BLOCK,
HIGH COURT QUARTERS
NGEF LAYOUT,OPP. YALAVAYU TOWERS,
BENGALURU-560036.

...RESPONDENT

(NOTICE TO RESPONDENT SERVED)

THIS CP IS FILED U/S.24 OF CPC, PRAYING TO
WITHDRAW M.C.NO.1588/2020 FROM THE FILE OF HON'BLE III

-2-

NC: 2023:KHC-K:6015
CP No. 200027 of 2021

ADDL. PRL. JUDGE FAMILY COURT, BANGALORE AND
TRANSFER THE SAME TO THE COURT OF HON'BLE CIVIL JUDGE
AND JMFC, MUDDEBIHAL, AND FURTHER DIRECT THE CIVIL
JUDGE AND JMFC, MUDDEBIHAL TO HEAR M.C.NO.1588/2020
AND DISPOSE OFF THE SAME IN ACCORDANCE WITH LAW, IN
THE INTEREST OF JUSTICE AND EQUITY & ETC.

THIS PETITION COMING ON FOR ADMISSION THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

Though the respondent is served with notice he has chosen to remain absent.

2. Heard the learned counsel for petitioner.

3. The Petitioner-wife is before this Court seeking to withdraw M.C.No.1588/2020 pending on the file of III Addl. Principal Judge Family Court, Bangalore and transfer to the court of Civil Judge & JMFC, Muddebihal.

4. It is not in dispute that the petitioner is the legally wedded wife of respondent and marriage was solemnized on 30.04.2008 as per the Hindu customs and traditions at Hirur temple at Hirur, Dist. Vijayapura. Due to un-cordial relation between the petitioner and the NC: 2023:KHC-K:6015 respondent, they are living separately, since, 2015, this being so, it appears that initially the wife had filed Crl.Misc.No.480/2015, and subsequently during the pendency of the petition on the assurance made by the respondent to take back the petitioner and lead happy married life, a joint memo was filed and the said petition came to be closed.

5. Since the respondent did not adhere to the terms of joint memo, the petitioner filed a complaint against the respondent under the provisions of Section 12 of Domestic Violence Act on the file of the Civil Judge & JMFC, Muddebihal which is pending for hearing. In the meanwhile, the respondent - husband has filed M.C.No.1588/2020 under the provisions of Section 13(1)(ia) (ib) of the Hindu Marriage Act, 1955 on the file of III Addl. Prl. Judge Family Court, Bangalore seeking dissolution of marriage on the ground of cruelty and desertion.

NC: 2023:KHC-K:6015

6. Learned counsel for the petitioner would contend that petitioner is residing in Muddebihal along with her family members, and would contend that the distance between Muddebihal and Bangalore is around 460 K.Ms causing inconvenience to wife to attend the proceedings in M.C.No.1588/2020 at Bangalore. The learned counsel would contend that the convenience of the wife takes a paramount concern while transferring the petition from one place to another.

7. Section 24 of the CPC enumerates this Court to exercise power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Apex Court in catena of judgment in line. The Apex Court in case of N.C.V. AISHWARYA VS. A.S.SARAVANA KARTHIK SHA reported in 2022 SCC OnLine SC 119 has held that at para No.9 which reads as under:

NC: 2023:KHC-K:6015 "9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding.

In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. In the present case, the petitioner - wife is residing in Muddebihal taluk, Vijayapura district at her parents house, it is inconvenient for the petitioner to travel alone all the way to Bangalore which is around 460 K.Ms. NC: 2023:KHC-K:6015

9. In light of the reasons stated supra, the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

ORDER

a) The civil petition is allowed.

b) The M.C.No.1588/2020 pending on the file of the III Addl. Principal Judge, Family Court, Bangalore is withdrawn and transferred to the court of Senior Civil Judge & JMFC, Muddebihal.

Accordingly, civil petition stands disposed of.

Sd/-

JUDGE CT: NS BL